

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/6/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1900469

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MICHAEL WOLF

and

RESPONDENT: LAURA PUCCI

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – TERMINATE DVRO

RULING

This matter is before the Court on Respondent/Mother's May 11, 2026, *ex-parte* Request for Order to modify custody and visitation regarding the parties' child Bodhi (DOB: 01/20/2018). Mother also requests to terminate the 3-year DVRO that was issued on August 22, 2024.

Procedural History

The *ex parte* application was heard on May 11, 2026, where Mother's request was denied and set for hearing on May 19, 2026, in order to set a hearing schedule. On May 19, 2026, the matter was continued to July 9, 2026, with all existing orders in effect and the parties referred to Marin Family Court Services for mediation, counseling and recommendations.

This case has a detailed and complicated procedural history. There are at least two orders that are at the center of Mother's request: (1) the Findings and Order After Hearing dated May 15, 2025, and (2) the Domestic Violence Restraining Order dated August 22, 2024.

At a hearing on May 15, 2025, the Court confirmed that Father was granted sole legal and physical custody of the parties' child and was allowed to relocate to Mexico. The order followed an evidentiary hearing on March 26, 2025, that involved testimony from both parties and an additional six witnesses. The Court found that Mother did not meet her burden of proving that Bodhi's moving to Mexico would be detrimental to the child.

The restraining order that issued by this Court on August 22, 2024, is for a period of three years and grants Father sole legal and physical custody of Bodhi with supervised visits to Mother.

Discussion

Mother request that the Court order joint legal and physical custody, restore communication via OFW, Sun/Wed 6pm PST, commencing no later than Mother's Day, and specify that all visitations be unsupervised. Mother also request a hearing date for full custody re-evaluation under FC 3011, 3044, 3111 as well as make-up visitation with grandparents for one month during the summer of 2026.

On June 29, 2026, Father submitted a Responsive Declaration. He requests that Mother's requests be denied. He states that Mother's request for the child to have visitation in New Jersey with supervision by the Maternal Grandmother is a ploy "to circumvent the restraining order".

Family Code §3044 states that "Upon a finding by the court that a party seeking custody of a child has perpetrated domestic violence within the previous five years...there is a rebuttable presumption that an award of sole or joint physical or legal custody of a child to a person who has perpetrated domestic violence is detrimental to the best interest of the child, pursuant to [Sections 3011](#) and [3020](#). This presumption may only be rebutted by a preponderance of the evidence."

On July 6, 2026, Marin Family Court Services (FCS) submitted its report following interviews with both parties. Recommendations were made by FCS, including that all orders remain in effect and a schedule for contact with Mother was made. This is the fifth report prepared by FCS with respect to this family (prior reports are dated 6/17/2024, 5/1/2024, 3/18/2024, and 4/25/2019).

On July 7, 2026, Father submitted a statement of agreement/disagreement. Father does not agree to the Maternal grandmother, Kathy, being the supervisor. Father also wants the ability to change the calls if there is a scheduling conflict.

Order

Based on the information before the court, the Court finds good cause and that it is the best it the minor child, Bodhi (DOB: 01/20/2018), to adopt the FCS recommendations, as set forth in its report issued on June 30, 2026, as modified by the Court, as follows:

All current orders shall remain in effect with the following additions/modifications:

1. Laura shall have the opportunity to have reasonable text communication with Bodhi, which shall be monitored by Michael. "Reasonable" shall be construed as no more than twice a week of Mother-initiated texts. In addition, Mother may respond to texts initiated by Bodhi. Such responses shall not be counted in the twice-a week texts.
2. Laura shall have video calls with Bodhi through Our Family Wizard every 1st, 3rd, and 5th (if any) Sunday of the month at 6:00 p.m. Mexico time. Visits shall be anywhere from 20 minutes to 60 minutes, depending on Bodhi's interest and participation. Visits shall be supervised by Laura's mother, Kathy, or another supervisor agreed upon by

Michael. Any supervisors shall review the court guidelines for supervision and shall abide by them.

3. Any contact or visits between Bodhi and any of his grandparents shall occur as arranged and agreed upon by Michael.
4. The current orders around visits and contact with Bodhi shall be reviewed in March of 2027.

As authorized by CRC Rule 5.125, the Court shall prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 2103195

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: NICHOLAUS CLARENCE
GARCIA

and

RESPONDENT: MICHELE WEIR GARCIA

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VEXATIOUS LITIGANT
REQUEST 2) REQUEST FOR ORDER – VISITATION

RULING

Respondent/Mother Michele Weir has filed two Requests for Order (RFO). First, Mother filed a RFO on May 28, 2026, relating to custody and visitation of the parties' three minor children, Jaxson (FOB 8/3/2012), Tamzin (DOB 3/8/2015), and Bellamy (DOB 6/12/2017). Second, Mother has filed a Request that Petitioner/Father Be Declared a Vexatious Litigant under California Code of Civil Procedure section 391.7 and 391.1. As to this second RFO, Mother requests this Court impose a pre-filing order requiring that all proposed litigation be submitted to the Presiding Judge and that the Presiding Judge permit the filing only if it appears to have merit and is not intended for harassment or delay. Further Mother seeks an order for deposit of security of \$7,500 which would constitute a fund for reimbursement for continued abuses as well as serve to deter Father from his alleged on-going abuses of the judicial system. The Court addresses each of these RFOs below.

Request for Order regarding Visitation and Custody

Mother filed a request to modify visitation and custody orders and decrease Father's time with the children due to Father's failure to comply with current orders of this Court. Specifically, Mother seeks to suspend Father's alternating Thursday overnights until Father complies with the Findings and Order After Hearing of December 19, 2025 (FOAH). Mother identifies three areas of Father's noncompliance: (1) failure to move forward with co-parenting counseling, (2) failure to respond in a timely way to Our Family Wizard messages, and (3) failure to provide check-ins with the children as set out in the FOAH during Father's custodial time.

The parties were referred to Marin Family Court Services (FCS) for mediation, counseling and recommendations. Both parties were interviewed. FCS submitted its report dated July 3, 2026.